STATE OF MARYLAND	*	**IN THE**
	*	**CIRCUIT COURT**
v.	*	**FOR**
JOHN A. SMITH,	*	**BALTIMORE CITY**
Defendant.	*	**Case No. 24-CR-004512**

* *

DEFENDANT'S MOTION IN LIMINE TO EXCLUDE IDENTIFICATION TESTIMONY OF MAY CHEN AND TO COMPEL PRODUCTION OF EXCULPATORY EVIDENCE

Defendant John A. Smith, through undersigned counsel, Lauren Okafor and Okafor & Reyes LLP, moves this Court (1) to exclude any testimony by May Chen identifying the Defendant as the driver of a pickup truck on the night of May 3, 2024, and (2) to compel the State to produce exculpatory evidence under Maryland Rule 4-263 and Brady v. Maryland, 373 U.S. 83 (1963). In support, the Defendant states:

I. BACKGROUND

The State's case on Counts Two and Three rests on a single inference: that because Mr. Smith's access badge was used at the Acme Logistics warehouse at 10:37 p.m., Mr. Smith must have been the one holding it. The State offers two pieces of evidence to bridge that gap. The first is Ms. Chen, a neighbor at 1420 Elm Street, who told Detective Kowalski that she saw "Mr. Smith" back out of the driveway at about 10:05 p.m. The second is the absence of any other badge activity that night.

Neither bridge holds. Records of Harbor Pediatric Urgent Care, produced to the State on May 20, 2024, show that Mr. Smith checked in his seven-year-old granddaughter, E.S., at 9:52 p.m. and that he was in the exam room continuously from 10:31 p.m. until discharge at 11:31 p.m. The attending physician attested that the grandfather was present for the entire provider encounter. The clinic is roughly twenty minutes from the warehouse.

Meanwhile, the Defendant's adult son, Stephen Smith, testified at his May 30, 2024 deposition that he took his father's pickup truck from the Elm Street driveway at about 10:00 p.m., that his father's badge lanyard hung on the same hook as the truck keys, and that he

returned at about 11:45 p.m., wearing a dark jacket and an Orioles cap. He is roughly the Defendant's height and build. The younger Mr. Smith worked nights at the same warehouse in 2022 and knew the route from the dock to the operations office. To be clear, the Defendant does not accuse his son of anything. But Steve's testimony makes Ms. Chen's identification of "Mr. Smith" exactly as consistent with one man as with the other.

II. MS. CHEN'S IDENTIFICATION TESTIMONY SHOULD BE EXCLUDED

Due process forbids the admission of identification evidence that is so unreliable that it creates a very substantial likelihood of misidentification. Manson v. Brathwaite, 432 U.S. 98 (1977). The reliability factors are familiar: the witness's opportunity to view the person, her degree of attention, the accuracy of any prior description, her level of certainty, and the time between the event and the identification. Neil v. Biggers, 409 U.S. 188 (1972). The Supreme Court applied the same totality-of-the-circumstances approach to a neighbor's after-dark recognition testimony in Smith v. Jones, 512 U.S. 218 (1994), holding that familiarity with a person "does not cure an observation that never included his face." Smith, 512 U.S. at 224.

Every factor cuts against reliability here. Ms. Chen saw the driver from behind, at night, while carrying trash to the curb, from a distance she estimated at forty feet. She described only a man in a baseball cap. She told police she assumed the driver was "John, the father," because "Steve doesn't live there anymore," which is an inference about who ordinarily drives the truck, not an observation of who drove it. Under Smith's reasoning, a witness who infers identity from the vehicle rather than the person has not identified anyone at all. Id. at 226. Maryland courts have excluded recognition testimony on similar facts. See Smith v. State, 158 Md. App. 673, 690 (2004) (neighbor's identification of "the man from next door" inadmissible where witness conceded she saw only his back).

Nor is the testimony admissible as lay opinion under Maryland Rule 5-701. A lay opinion about identity must be rationally based on the witness's own perception. Ms. Chen's statement that she saw "Mr. Smith" is a conclusion drawn from the truck, the hour, and her expectations. See United States v. Marsh, 451 F.3d 712, 719 (4th Cir. 2006) (lay

identification testimony excluded where witness "recognized the car, not the driver"). At a minimum, the State should be precluded from eliciting the words "Mr. Smith" from Ms. Chen without first establishing, outside the jury's presence, which Mr. Smith she claims to have seen and on what basis.

III. ANY OUT-OF-COURT STATEMENT BY MS. CHEN IS TESTIMONIAL

Ms. Chen's written statement was taken by a police officer during a canvass, a day after the incident, for the purpose of establishing past events relevant to a prosecution. It is testimonial. Crawford v. Washington, 541 U.S. 36, 68 (2004); Davis v. Washington, 547 U.S. 813, 822 (2006). If Ms. Chen does not testify and submit to cross-examination, the statement is inadmissible for any purpose, including through Detective Kowalski or the reporting officer, Officer Chen, who is no relation to the witness.

IV. THE STATE MUST PRODUCE EXCULPATORY EVIDENCE

The State's disclosure obligation extends to favorable evidence known to the police, whether or not the prosecutor has seen it. Kyles v. Whitley, 514 U.S. 419, 437-38 (1995); Price v. State, 82 Md. App. 59, 65 (1990). The Defendant specifically requests:

(a) the complete door-access log for May 3, 2024 for every badge, including badge A-17702 assigned to William Marsh, who reported the Patapsco invoices, who had a documented grievance against the Defendant, and who badged into the building at 11:19 p.m.;

(b) the results of latent-print analysis of the screwdriver recovered from the operations office (ECU Item 5);

(c) all records concerning the out-of-service dock camera (CAM-07), including work order WO-24-0613 and the identity of the person who reported the outage;

(d) the instructions given to teller Rosa Delgado before the photo array, the array itself, and any notes of her confidence statement, which the State's own report records as "about ninety percent"; and

(e) any statement by the victim, Darnell Price, describing the intruder, including any statement that the intruder appeared younger than sixty. Mr. Price has told defense investigators that the man "moved fast, like a younger guy."

The defense has asked for these items informally on three occasions. The State's response that it "will produce what it has when it has it" does not satisfy Rule 4-263, and the motions hearing is set for September 12, 2024.

V. CONCLUSION

For these reasons, the Defendant asks the Court to exclude Ms. Chen's identification testimony, or in the alternative to hold a pretrial hearing on its admissibility, and to order the State to produce the materials listed in Part IV within fourteen days.

Respectfully submitted,

/s/ Lauren Okafor
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REQUEST FOR HEARING

Pursuant to Maryland Rule 4-252(g), the Defendant requests a hearing on this motion.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 21st day of June, 2024, a copy of the foregoing was served through MDEC on Marcus Whitfield, Assistant State's Attorney, Office of the State's Attorney for Baltimore City, 120 E. Baltimore Street, Baltimore, MD 21202.

/s/ Lauren Okafor